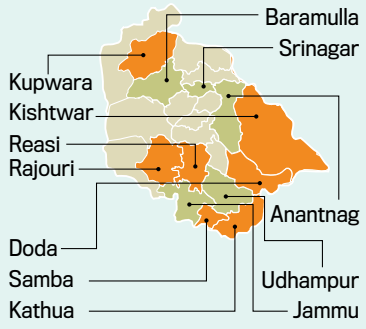
SEATS ON THE GROUND





BIGGER HOUSE

- **Total seats in House up from 83 to 90 (seats in Jammu go up from 37 to 43; in Kashmir, from 46 to 47)**
- **Two members, including a woman, to be nominated for assembly from 'Kashmiri migrant' community (defined as persons who migrated from J&K after Nov. 1, 1989, and registered with the Relief Commissioner)**
- **One seat to be reserved for 'displaced people' from PoK**
- **This takes the total nominated seats in assembly after J&K Reorganisation Act, 2019, to five, including two seats already reserved in the Act for women**
- **The LG will make the nominations to the House. No provision for consultation with the elected government or the CM**
- **Nominations will take the seat count to 95 plus 24 seats reserved for PoK. The total seats in the assembly will be 119**

preme Court judge Ranjana Prakash Desai in May 2022. After the outbreak of militancy in 1989, thousands of people, particularly Kashmiri Pandits, had fled to the safety of the plains in Jammu in the face of targeted attacks. The Jammu and Kashmir Migrant Immovable Property (Preservation, Protection and Restraint on Distress Sales) Act, 1997, describes them as "migrants". Official data says over 62,000 families had to abandon their homes and leave the Valley. Around 40,000 of them now live in Jammu and some 20,000 in New Delhi. Similarly, there are 41,844 families who fled PoK during the 1947, 1965 and 1971 wars between India and Pakistan.

Speaking in the Lok Sabha, the home minister said the bill was aimed at assuring justice to those deprived of it for 70 years. "Had terrorism been tackled at the beginning without considering votebank politics, Kashmiri Pandits wouldn't have had to leave the Valley," he said. Without naming National Conference (NC) president and MP Farooq Abdullah, he said that those who had been given the responsibility to stop the exodus were instead enjoying vacations in England.

The nomination of members appears to mirror a situation in Puducherry where the LG can now recommend three MLAs to the assembly. The move to induct members by then LG Kiran Bedi without consulting the Congress-led government was challenged in the Madras High Court and later in the Supreme Court in 2017-18 on the grounds that the Centre did not consult the state government before nominating the MLAs. The top court, though, did not find any illegality in it.

With the five nominations, the J&K assembly seat strength now goes up to 95. The delimitation commission had recommended six additional seats to Jammu and one to Kashmir. This has almost brought the two provinces—43 seats in Jammu and 47 in the Kashmir Valley—to an equal electoral plane, realising the BJP's long-cherished dream of ending the domination of the Muslim-majority Valley in the region's politics. The total number of assembly seats has increased to 119, including the 24 kept vacant for PoK.

Reactions in the Valley have been on expected lines. Businessman and aspiring politician Sandeep Mawa, who has been living in Kashmir since before the events of 2019 and has a supermarket in Srinagar's downtown area, feels this will come as a "healing balm" to the displaced communities. Hailing the home minister for the decision, he says the move will politically empower the Hindu community and give them a say in government decision-making. "It's a historic decision... we are a minuscule community who were scattered to different parts of the country due to terrorism," he says.

BJP leader and Jammu-based former deputy CM Kavinder Gupta is glad that both communities have got their due share and now wants elections to the assembly held as soon as possible. "Justice has been done with the delimitation commission giving Jammu its due share. Now we are at par with Kashmir on seats." He says there is a feeling in Jammu that it has lagged behind in development because of the skewed representation in the assembly. In fact, among all the prime ministers (till 1965) and chief ministers J&K has had since 1947, only one has been from Jammu, former Congressman Ghulam Nabi Azad (November 2005-July '08).

However, there are many, including Opposition leaders and political analysts, who believe this is all part of a "bigger plan" of the BJP to have its own government, one without encumbrances. The assembly election was last held in 2014 and J&K has been without an elected government since the PDP-BJP alliance government collapsed in June 2018. With the five nominations, the BJP will need only 43 seats to claim a majority. In the previous election, the party had bagged 25 seats for the first time in Jammu. It is